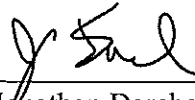


FIRST ENDORSEMENT

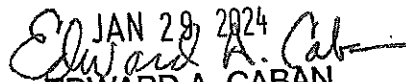
Executive Director Jonathan Darche, Civilian Complaint Review Board to Assistant Deputy Commissioner Nancy Slater, Department Advocate's Office, December 11, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-26867 against Police Officer Ariel Perez, Tax Registry No. 962679. The case was conferenced on August 31, 2023, where CCRB recommended a penalty of the forfeiture of TEN (10) vacation days with the understanding that the Charges and Specifications will be dismissed for plea purposes. ADCT Jeff Adler agreed that the penalty should be a Command Discipline Schedule B, but he disagrees with the forfeiture of TEN (10) vacation and believes the penalty should be the forfeiture of FIVE (5) vacation days.

CCRB respectfully disagrees with ADCT Jeff Adler. CCRB maintains that the recommended penalty should be the forfeiture of TEN (10) vacation days. The Charges and Specifications will be dismissed for plea purposes.



Jonathan Darche, Executive Director
New York City Civilian Complaint Review Board

DISAPPROVED

JAN 29 2024

EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2022-26867

BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, PEREZ	FIRST ARIEL	M.I. E	COMMAND DET SQD. BX-041
SHIELD NO. 21839	TAX REGISTRY NO. 962679	SOCIAL SECURITY NO.	DATE APPOINTED 10/11/2016	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Ariel Perez, on or about March 14, 2021, at approximately 2224, while assigned to 041 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he threatened § 87(2)(b) with the use of force, in that he stated in sum and substance, "... I'm going to drag you and I'm going to fucking throw you in the car" and/or "...I'm going to drag you and throw you into the fucking car" without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer Ariel Perez, on or about March 14, 2021, at approximately 2224, while assigned to 041 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, was discourteous to § 87(2)(b) in that he stated in sum and substance, "I'm going to drag you and I'm going to fucking throw you in the car" and/or "I'm going to drag you and throw you into the fucking car" without police necessity.	DISMISSED	

DC Brubaker
FIRST DEPUTY COMMISSIONER

12/14/23
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

1/29/24
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 16, 2024

Re: CCRB Case No. 202101651 involving Police Officer Ariel Perez, Tax No. 962679
(DADS No. 2022-26867)

Dear Mr. Darche:

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty regarding the substantiated allegations against Police Officer Ariel Perez and determined that the actions of Police Officer Perez do not warrant discipline.

On March 14, 2021, Police Officer Perez along with Sergeant Alejandra Perez and Police Officer Michael Kalendarev responded to the complainant's residence based on information provided by a witness which alleged the complainant fired shots from a vehicle outside the witness' residence. Based on the information provided by the witness, Sergeant Perez was able to determine that the complainant was wanted for reckless endangerment after the three officers had attempted to engage the complainant in a car stop on February 28, 2021.

The three officers proceeded to the complainant's address and upon their arrival they saw the previously described vehicle, double parked outside the building and observed the complainant walking towards the front entrance of the building. The officers approached the complainant in the courtyard with the intention of arresting him for the open complaint.

The arrest is captured on both surveillance camera and Body Worn Camera. The complainant is resisting being taken into custody by flailing his body. The complainant is eventually placed in handcuffs and has to be carried out due to his refusal to walk towards the front of the building. As the officers are awaiting a transport vehicle for the complainant, Police Officer Perez is heard saying to the complainant, "I'm going to drag you and I'm going to fucking throw you in the car". This comment is made in response to the complainant yelling and stating he was not going with the officers. Throughout the entire interaction the complainant is continuously irate and distorting his body.

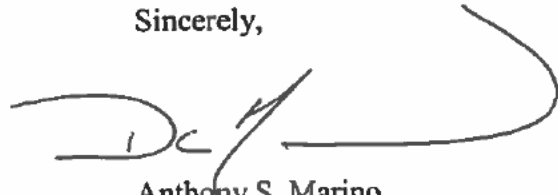
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Website: <http://nyc.gov/nypd>

CCRB states that the use of profanity and threat to drag the complainant was inappropriate given that the complainant was already in handcuffs, however within ten seconds of Police Officer Perez' statement the complainant is found to have removed his handcuffs and has to be restrained in order to be re-cuffed. Furthermore the complainant attempts to kick officers and within five minutes of being re-cuffed two loaded firearms are recovered from his right front pocket. The officers were dealing with an extremely volatile and dangerous situation.

Based on the totality of the circumstances, the Police Commissioner intends to dismiss the charges and specifications in this matter and impose no disciplinary action against Police Officer Perez, in connection with this matter.

Sincerely,

A handwritten signature in black ink, appearing to read 'DC' followed by a stylized flourish that extends to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Michael Martinez, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

January 26, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202101651 v. Police Officer Ariel Perez, Tax No. 962679 (DADS No. 2022-26867)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Andrew Marino, dated January 16, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the charges and take no disciplinary action against Police Officer Ariel Perez. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Marino stated that after reviewing the recommendation of the CCRB, you determined that no disciplinary action against Police Officer Perez is appropriate because of the totality of the circumstances. The CCRB disagrees with this conclusion and asks that the conditions of the Negotiated Settlement agreed upon by the CCRB and PO Perez be imposed.

In this case, the Complainant § 87(2)(b) was handcuffed and was being held by PO Kalendarev when PO Perez made the remark that he would “drag, § 87(2)(b) and throw him into the fucking car”. This statement and the threat of force were not justified. Given that § 87(2)(b) was restrained at this point, PO Perez’s threat to drag § 87(2)(b) and throw him into a police vehicle was not reasonable under the circumstances and only served to further escalate the situation. The fact that, subsequent to the statement by PO Perez, § 87(2)(b) managed to escape the handcuffs and that firearms were discovered in his packet, does not negate the fact that, at the time the discourteous statement was made, and force was threatened upon § 87(2)(b) these actions by PO Perez were not justified.

Given the evidence in this case and the fact that PO Perez has already accepted responsibility for his misconduct, then CCRB would ask that you approve the Negotiated Settlement of a dismissal of the charges and impose the recommended penalty of a Command Discipline B with the forfeiture of Ten (10) vacation days.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Jonathan Darche", is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board